

Court No. - 39

Case :- WRIT - C No. - 43719 of 2014

Petitioner :- Asis Kumar

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 5 Others

Counsel for Petitioner :- Vishal Agrawal, Anshika Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Learned Counsel appearing for respondent-Corporation prays for and is allowed 10 days time to seek instructions in the matter.

Put up as fresh on 3.9.2014.

Order Date :- 22.8.2014

n.u.

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Hon'ble Ashwani Kumar Mishra, J.

Heard learned counsel appearing for the petitioner, learned Standing Counsel for the respondents-State and Ms. Usha Kiran, appearing for the respondent nos.4 & 5-corporation.

Ms. Usha Kiran appearing for the respondent-Corporation on the basis of instructions states that provisional assessment inviting objections was sent to the petitioner through ordinary post. There is no material on record to establish that it was ever served upon the petitioner. Moreover, learned counsel for the petitioner states that he never received any provisional assessment bill.

From the perusal of records, it does not transpire as to whether any provisional assessment was actually served upon the petitioner or the petitioner was afforded an opportunity to raise objections against it.

This Court in ***Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)*** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment does not give the basis on which petitioner was assessed to pay Rs.2,32,643/-. The assessing authority has not recorded its satisfaction that the petitioner has committed theft of electricity.

In view of the fact that the instructions do not contain any positive reply with regard to method of service, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005 to give reply and object to the provisional assessment.

The writ petition is allowed. The impugned recovery certificate (Annexure No.6 to the writ petition) issued by respondent no.3 and all consequential proceedings thereto are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve it upon the petitioner. The final assessment order will be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in ***Ashok Kumar*** (supra).

Order Date :- 3.9.2014

Anil